
PROGRAMME PARTICIPATION NON-DISCLOSURE AGREEMENT

Technology Accelerator — Confidentiality and IP Assignment

BETWEEN

Momentum Ventures Studio LLC 380 Portage Avenue, Palo Alto, California 94306 Delaware LLC | EIN
47-2034918 (the "Studio")

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation (the
"Company" / "Receiving Party")

Reference: **MVS-NDA-2025-APPLY-0114**

Date: **10 April 2025**

Governing Law: **State of California, United States**

Confidentiality Level: **CONFIDENTIAL — PROGRAMME PARTICIPATION CONDITIONS**

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IMPORTANT NOTICE TO COMPANY: THIS AGREEMENT CONTAINS INTELLECTUAL PROPERTY ASSIGNMENT PROVISIONS IN SECTION 7 THAT TRANSFER OWNERSHIP OF CERTAIN TECHNOLOGY AND DERIVATIVE WORKS TO MOMENTUM VENTURES STUDIO LLC. THE COMPANY IS STRONGLY ADVISED TO OBTAIN INDEPENDENT LEGAL COUNSEL BEFORE EXECUTING THIS AGREEMENT. SIGNING THIS AGREEMENT CONSTITUTES ACCEPTANCE OF ALL TERMS INCLUDING THE IP ASSIGNMENT AND WORK-FOR-HIRE PROVISIONS.

1. DEFINITIONS

1.1 In this Agreement:

"Agreement" means this Programme Participation Non-Disclosure Agreement;

"Company" means NovaTech Solutions Inc., designated as "Receiving Party" for purposes of Sections 3, 4, 5, 6, and 7;

"Confidential Information" has the meaning in Section 2;

"Derivative Work" means any improvement, adaptation, modification, enhancement, refinement, or invention that: (a) uses, incorporates, or is based upon Disclosed Technology; (b) was created with knowledge of or access to Disclosed Technology; or (c) would not have been conceived or created absent the Company's access to the Disclosed Technology through the Programme;

"Disclosed Technology" means all technology, source code, algorithms, business models, market research, customer data, financial projections, product concepts, and other information disclosed by or on behalf of Company at any time during Programme participation, including all oral disclosures;

"Effective Date" means 10 April 2025;

"Labour Code Section 2870" means California Labor Code Section 2870, which limits the scope of IP assignment agreements with respect to inventions developed by employees using their own time and resources;

"Programme" means the Momentum Accelerator Programme, a technology acceleration programme operated by Studio;

"Programme Period" means the period commencing on the Effective Date and ending on the later of: (a) the date of formal Programme completion; or (b) twelve (12) months from the Effective Date;

"Studio" means Momentum Ventures Studio LLC;

"Work for Hire" has the meaning in 17 U.S.C. 101;

2. CONFIDENTIAL INFORMATION

2.1 **Studio's Confidential Information** means programme materials, mentor identities, portfolio company information, investor introductions, and other non-public information disclosed by Studio to Company in connection with the Programme.

2.2 **Disclosed Technology.** All technology, source code, algorithms, models, business plans, and related information disclosed by Company during the Programme, including **all oral disclosures made at any time during Programme participation, without any requirement for written confirmation or summary.**

2.3 **No Exclusions for Company Disclosures.** No exclusion shall apply to Disclosed Technology. All information disclosed by Company during the Programme is and shall remain permanently subject to the obligations of this Agreement and the IP assignment provisions of Section 7, regardless of public

availability, prior knowledge, independent development, or any other circumstance.

3. COMPANY'S CONFIDENTIALITY OBLIGATIONS (RECEIVING PARTY)

3.1 Company shall hold Studio's Confidential Information in strict confidence and shall not disclose it to any third party without prior written consent.

3.2 **Investor and Fundraise Disclosure Restriction.** During the Programme Period and for a period of two (2) years thereafter, Company shall not disclose any Programme Information to any investor, potential acquirer, strategic partner, or third-party financier without the prior written consent of Studio. This restriction applies to investor presentations, data room disclosures, and any other form of disclosure to current or prospective shareholders or financial partners.

3.3 **Legal Process Restriction.** Company shall not disclose Programme Information pursuant to any legal process, court order, or regulatory requirement without the prior written consent of Studio, which Studio may withhold in its sole discretion.

4. STUDIO'S OBLIGATIONS

4.1 Studio shall hold Disclosed Technology in confidence and shall not disclose it publicly without Company consent, except as reasonably necessary for administration of the Programme or for Studio's investment evaluation purposes.

5. TERM — PERPETUAL IP OBLIGATIONS

5.1 Confidentiality obligations apply for so long as the relevant Confidential Information retains any commercial value, with no fixed expiry date. **The IP assignment obligations in Section 7 are permanent, irrevocable, and survive any termination or expiry of this Agreement.**

6. NO RETURN OR DESTRUCTION — STUDIO

6.1 No obligation to return or destroy Disclosed Technology shall apply to Studio. Studio may retain all Disclosed Technology indefinitely for its own investment analysis, portfolio management, and Programme administration purposes.

7. INTELLECTUAL PROPERTY — WORK FOR HIRE AND ASSIGNMENT

7.1 **Work for Hire.** To the maximum extent permitted by applicable law, including 17 U.S.C. 101, any software, algorithm, machine learning model, technical architecture, application programming interface, database schema, or other work of authorship **created, improved, adapted, refined, or enhanced by Company or its employees or contractors during the Programme Period** shall be deemed a **work made for hire** within the meaning of 17 U.S.C. 101, with Momentum Ventures Studio LLC designated as the commissioning party. All right, title, and interest in and to all such works shall vest solely and exclusively in Studio immediately upon creation.

7.2 **Assignment of Derivative Works.** To the extent that any work created, improved, or developed by Company during or arising from the Programme Period does not qualify as a work made for hire under 17 U.S.C. 101, **Company hereby irrevocably assigns, transfers, and conveys to Momentum Ventures Studio LLC all right, title, and interest (including all patent rights, copyright, trade secret rights, mask work rights, moral rights, and all other intellectual property rights) in and to any and all Derivative Works, improvements, adaptations, and inventions of the Disclosed Technology** arising from Company's participation in the Programme. This assignment is effective immediately upon execution

of this Agreement and applies to works created before, during, or after the Programme Period if such works are derived from or connected to the Disclosed Technology.

7.3 Further Assurances. Company agrees to execute all such further documents, assignments, powers of attorney, and instruments as Studio may reasonably request to confirm, record, and perfect the rights and assignments in this Section 7 in any jurisdiction. In the event Company fails to execute such documents within ten (10) days of request, Company hereby appoints Studio as its attorney-in-fact to execute such documents on its behalf.

7.4 California Labor Code Section 2870. Company represents and warrants that the assignments in this Section 7 do not conflict with California Labor Code Section 2870 and agrees to indemnify and hold harmless Studio from any claim, loss, or liability arising from any conflict between the assignments and the rights of Company's employees under Section 2870.

8. REMEDIES

8.1 Studio shall be entitled to seek injunctive relief, specific performance, IP transfer orders, and any other equitable or legal remedy from any court of competent jurisdiction without posting bond. **Company irrevocably pre-consents to the entry of any such order and acknowledges that any breach would cause irreparable harm.**

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Momentum Ventures Studio LLC:

380 Portage Avenue, Palo Alto, California 94306, United States

Attention: Managing Partner, Momentum Ventures Studio LLC

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **State of California, United States**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **the courts of the State of California (County of Santa Clara) and the federal courts of the Northern District of California** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of the courts of the

State of California (County of Santa Clara) and the federal courts of the Northern District of California on the grounds of inconvenient forum or any other grounds.

24.3 Injunctive Relief. Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of
Momentum Ventures Studio LLC

Signature: _____

Print Name: [NAME]

Title: Managing Partner

Date: _____

Witness Name: _____

Witness Sig.: _____

SIGNED for and on behalf of
NovaTech Solutions Inc. (Company)

Signature: _____

Print Name: [NAME]

Title: Authorised Signatory

Date: _____

Witness Name: _____

Witness Sig.: _____